

26STCP00229 26STCP00229

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Case Number: 26STCP00229 Hearing Date: August 20, 2026 Dept: 732

Chatham Bend Holdings, LLC v. Amrish Patel., et al.

Thursday, August 20, 2026

CASE NUMBER: 26STCP00229

OPPOSED

Defendant Amrish Patel's Motion to Vacate Sister

State Judgment

Facts:

This is an action on a sister state judgment. The action is based on an application submitted by Plaintiff Chatham Bend Holdings, LLC ("Plaintiff") upon a judgment entered on February 16, 2021, against Defendants Amrish Patel and Lab Development Group, LLC ("Defendants") in Greenville County, South Carolina, in the amount of \$366,832.88. (Application at p. 1.)

Procedural History: Plaintiff

filed the application on January 14, 2026.

Judgment

was entered pursuant to the application on January 14, 2026.

A

proof of service was filed indicating service of the notice of entry of

judgment upon Defendants on February 2, 2026.

Defendant

Patel filed the present motion to vacate judgment on March 4, 2026.

Plaintiff

filed an opposition on June 15, 2026.

Defendant

filed a reply on June 22, 2026.

On

June 29, 2026, this court continued hearing on the present motion to permit supplemental briefing as to whether Defendant's address was ascertainable when the underlying plaintiff sought service by publication in the underlying action.

Defendant

filed supplemental briefing on August 5, 2026, and Plaintiff filed its supplement on August 7, 2026.

Analysis

I.

MOTION TO VACATE SISTER STATE JUDGMENT

A sister state judgment entered in this state "may be vacated on any ground which would be a defense to an action in this state on the sister state judgment, including the ground that the amount of interest accrued on the sister state judgment and included in the judgment entered pursuant to this chapter is incorrect." (Code Civ. Proc. § 1710.40, subd. (a).)

The defenses that

may be asserted in a motion to vacate under section 1710.40 are not well defined. The Act itself does not specify the available defenses. However, the Law Revision Commission's comment to section 1710.40 lists certain "[c]ommon" defenses. It states: "Common defenses to enforcement of a sister state judgment include the following: the judgment is not final and unconditional (where finality means that no further action by the court rendering the judgment is

necessary to resolve the matter litigated); the judgment was obtained by extrinsic fraud; the judgment was rendered in excess of jurisdiction; the judgment is not enforceable in the state of rendition; the plaintiff is guilty of misconduct; the judgment has already been paid; suit on the judgment is barred by the statute of limitations in the state where enforcement is sought.” (Cal. Law Revision Com. com., 20 West's Ann. Code Civ. Proc. (2007 ed.) foll. § 1710.40, p. 385; see *Traci & Marx Co. v. Legal Options, Inc.* (2005) 126 Cal.App.4th 155, 158–159[23 Cal.Rptr.3d 685] (*Traci & Marx*).)

(*Casey v. Hill* (2022) 79 Cal.App.5th 937, 976.) One available ground to challenge the sister state judgment is to argue that the other court's “exercise of personal jurisdiction violated due process.” (*Id.* at p. 960.)

“The party moving under section 1710.40 to set aside the sister state judgment has “the burden to show by a preponderance of the evidence why it was entitled to relief.” (*Conseco Marketing, LLC v. IFA & Ins. Services, Inc.* (2013) 221 Cal.App.4th 831, 841.)

Defendant Amrish Patel (“Defendant”) argues that he sister state judgment obtained against him in South Carolina on February 16, 2021, and presently entered with this court by Plaintiff Chatham Bend Holdings, LLC (“Plaintiff”), the assignee of the judgment, was obtained in violation of constitutional guarantees of due process because he was never served with process and lacked actual notice of the underlying action. (Patel Decl. ¶¶ 2–3.)

Plaintiff in opposition contends that Defendant did not receive actual notice of the South Carolina action because service was made by publication pursuant to court order. (Opposition at p. 2; Segal Decl. Exhs. 1–3.)

Defendant in reply argues that service by publication failed to comport with due process because the application materials do not support the conclusion that Plaintiff diligently attempted to serve Defendant by other means. (Reply at pp. 1–2.)

“Consistent with the notions of fair play and due process, substituted service by publication is “a last resort” when “reasonable diligence to locate a person in order to give him notice before resorting to

the fictional notice afforded by publication” has been exercised.” (Calvert v. Al Binali (2018) 29 Cal.App.5th 954, 963.) “If a creditor’s identity is known or reasonably ascertainable, service by publication does not comply with the Fourteenth Amendment due process clause notice requirement—actual notice is constitutionally required. (Flores v. Kmart Corp. (2012) 202 Cal.App.4th 1316, 1330.) “If a defendant’s address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort.” (Watts v. Crawford (1995) 10 Cal.4th 743, 749 fn. 5.)

The parties do not dispute whether Defendant had actual notice of the underlying South Carolina action. He did not. Plaintiff presents the affidavit of diligence supporting the application for service by publication in that action, signed on September 24, 2020, in which then-counsel for the underlying plaintiff, Coastal Carolina National Bank, stated as follows:

I have reviewed publicly available documents on file with Greenville County but have been unable to locate Lab Development Group LLC a/k/a Lab Development Group (LDG) LLC and Armish Patel (“Publication Defendants”). This search has included a skip-trace of Publication Defendants, a review of circuit court records and deed records, and searches of reputable online search engines/websites in an attempt to locate Publication Defendants.

(Segal Decl. Exh. 2 [Mitchell Decl. ¶ 4].) The declaration then describes four service attempts upon co-defendant Lab Development Group, LLC at three different addresses, and two service attempts upon Amrish Patel at an address on Providence Boulevard in Macon, Georgia, listed as Defendant’s “last known address.” (Segal Decl. Exh 2 [Mitchell Decl. ¶ 5.]) The documents contain an affidavit of diligence by a process server, listing four attempts upon the Macon address without making contact with any individual residing there. (Segal Decl. Exh. 2.) The documents include two affidavits from a sheriff’s deputy upon the Macon address, who states in each that the defendants “have not lived here in at least 3 years.” (Ibid.)

Plaintiff also submits a press-release from the FDIC Office of Inspector General discussing an apparent criminal conviction by Defendant in 2023 for crimes related to bank fraud. (Segal Decl. Exh. 5.) It is not apparent whether this evidence is admissible to impeach Defendant’s credibility. (See

Evid. Code § 788 [describing when felony convictions are admissible].)

Plaintiff also submits evidence of four other judgments entered against Defendant in Greenville County during the period from 2019 through 2020, three of which are evidently for “foreclosure.” (Segal Decl. Exh. 6.)

Defendant in reply

contends that the evidence presented by Plaintiff in opposition does not demonstrate diligence in seeking to serve Plaintiff, or demonstrate that his location was not reasonably ascertainable. Defendant submits materials indicating that from about 2017 through 2019, about a year before service was attempted in 2020, he was doing business as a doctor from an office on Patrick Henry Parkway in McDonough, Georgia. (Supp. Patel Decl. Exhs. H–J.) The first two of these exhibits consist of a DEA registration dated January 31, 2017. (Supp. Patel Decl. Exh. H.) The second is a Henry County occupation tax certificate, seeking Defendant’s gross receipts for the period from October 2018 through September 2019, and listing his practice location as the same Patrick Henry Parkway address. (Supp. Patel Decl. Exh. I.) The same document lists his home address as being located in Stockbridge, Georgia. (Ibid.) That same Stockbridge address is listed as Defendant’s address in what is evidently an August 2017 Experian report. (Supp. Patel Decl. Exh. F.)^[1] Defendant finally submits an undated screenshot of what is evidently a web profile on a platform called “doximity,” listing his practice address as being once again Patrick Henry Parkway in MacDonough, Georgia. (Supp. Patel Decl. Exh. J.)

In its order of June 29, 2026, this court ordered supplemental briefing as to whether Defendant’s location was ascertainable at the time service by publication was requested in the underlying South Carolina action. Plaintiff has since then provided a supplemental declaration of counsel, which offers no new evidence, and includes only critique of Defendant’s evidence as either being beyond the time period relevant to the September 2020 publication request, or else being of relevance only if Plaintiff had been aware during that time that Defendant was a doctor. (Supp. Segal Decl. ¶¶ 3–11.)

Defendant meanwhile presents archived versions of publicly accessible internet pages dated 2018 through September 2020 indicating that Defendant’s business address on Patrick Henry Parkway in McDonough, Georgia was searchable and available. (Patel Decl. Exhs. A–G.)

The evidence submitted by both parties supports the conclusion that Defendant's address was reasonably ascertainable when Defendant requested service by publication, and thus that such service did not comport with due process or support the exercise of jurisdiction over Defendant in the underlying action. (See Flores, supra 202 Cal.App.4th at p. 1330.) The declarations of diligence presented by Plaintiff show several attempts at service upon Defendant at one address, without explanation as to why the address was chosen, and repeated instances in which the server was informed that Defendant had not lived at the address for years. The only explanations as to further attempts to locate Defendant in the declaration supporting publication were conclusory, and are not elaborated upon in the present action.

Conversely, Defendant has presented numerous publicly available sources, the authenticity of which are not disputed, from which at least his business location in Georgia during the relevant period might have been derived. Although Plaintiff argues that these sources would have required knowledge that Defendant was a doctor, it offers no evidence or argument that the plaintiff in the underlying action in fact lacked such knowledge. Given that the plaintiff was a bank prosecuting a breach of loan and guaranty claim against Defendant, it is reasonable to conclude that it had made itself aware of Defendant's profession in the course of its dealings and knew of same while prosecuting the underlying action.

Defendant has accordingly met his burden to show grounds for vacating the sister state judgment for lack of personal jurisdiction under Code Civ. Proc. § 1710.40, subd. (a).). The motion is therefore GRANTED.

Superior Court of California

County of Los Angeles

Department 732

CHATHAM
BEND HOLDINGS, LLC.,

Plaintiff

v.

AMRISH PATEL. et al.,

Defendants.

Case No.:

26STCP00229

Hearing Date: August 20, 2026

[TENTATIVE] RULING RE:

Defendant

Amrish Patel's Motion to Vacate Sister State Judgment

Defendant

Amrish Patel's Motion to Vacate Sister State Judgment is GRANTED.

Defendant to give notice.

Dated: August 20, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court

[1]

The FDIC press release submitted by Plaintiff also lists Defendant as being from Stockbridge, Georgia. (Segal Decl. Exh. 5.)